

COMMITTEE ON APPROPRIATIONS
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1168
(Reference to Senate engrossed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 32-1231, Arizona Revised Statutes, is amended
3 to read:

4 32-1231. Persons not required to be licensed; school employee
5 lists; complaints; board jurisdiction

6 A. This chapter does not prohibit:

7 1. A dentist, dental therapist or dental hygienist who is
8 officially employed in the service of the United States from practicing
9 dentistry in the dentist's, dental therapist's or dental hygienist's
10 official capacity, within the scope of that person's authority, on persons
11 who are enlisted in, directly connected with or under the immediate
12 control of some branch of service of the United States.

13 2. A person, whether or not licensed by this state, from practicing
14 dental therapy either:

15 (a) In the discharge of official duties on behalf of the United
16 States government, including the United States department of veterans
17 affairs, the United States public health service and the Indian health
18 service.

19 (b) While employed by tribal health programs authorized pursuant to
20 Public Law 93-638 or urban Indian health programs.

21 3. An intern or student of dentistry, dental therapy or dental
22 hygiene from ~~operating~~ PRACTICING in the clinical departments or
23 laboratories of a recognized dental school, recognized dental therapy
24 school, recognized dental hygiene school or hospital under the supervision
25 of a dentist.

26 4. An unlicensed person from performing for a licensed dentist
27 merely mechanical work on inert matter not within the oral cavity in the
28 construction, making, alteration or repairing of any artificial dental
29 substitute or any dental restorative or corrective appliance, if the casts
30 or impressions for that work have been furnished by a licensed dentist and
31 the work is directly supervised by the dentist for whom done or under a
32 written authorization signed by the dentist, but the burden of proving
33 that written authorization or direct supervision is on the person charged
34 with having violated this provision.

1 5. A clinician who is not licensed in this state from giving
2 demonstrations, before bona fide dental societies, study clubs and groups
3 of professional students, that are free to the persons on whom made.

4 6. The state director of dental public health from performing the
5 director's administrative duties as prescribed by law.

6 7. A dentist or dental hygienist to whom a restricted permit has
7 been issued from practicing dentistry or dental hygiene in this state as
8 provided in sections 32-1237 and 32-1292.

9 8. A dentist, dental therapist or dental hygienist from practicing
10 ~~for educational purposes on behalf~~ IN THE CLINICAL DEPARTMENTS OR
11 LABORATORIES of a recognized dental school, recognized dental therapy
12 school or recognized dental hygiene school.

13 9. A dentist who holds an active and unrestricted license in
14 another state, territory or possession of the United States from
15 practicing for educational purposes in connection with recognized
16 continuing dental education. A dentist who practices under this
17 paragraph:

18 (a) May not receive compensation for dental services provided in
19 connection with recognized continuing dental education.

20 (b) Is subject to the jurisdiction and discipline of the board to
21 the same extent as dentists who are licensed in this state.

22 (c) May not provide any dental care or services in this state to a
23 person who is either:

24 (i) Physically unable to safely receive the dental care or
25 services.

26 (ii) Not mentally competent to knowingly and voluntarily consent to
27 the dental care or services.

28 (d) Shall file a restricted permit application on a form approved
29 by the board with the provider of the recognized continuing dental
30 education before providing any dental care or services in this state. The
31 provider of the recognized continuing dental education shall retain the
32 dentist's restricted permit application for a period of at least five
33 years.

34 B. A RECOGNIZED DENTAL SCHOOL SHALL ANNUALLY PROVIDE TO THE BOARD A
35 LIST OF THE LICENSED DENTISTS, DENTAL THERAPISTS AND DENTAL HYGIENISTS
36 THAT THE RECOGNIZED DENTAL SCHOOL EMPLOYS TO PRACTICE IN THE RECOGNIZED
37 DENTAL SCHOOL'S CLINICAL DEPARTMENTS OR LABORATORIES.

38 C. IF THE BOARD RECEIVES A COMPLAINT THAT NAMES A RECOGNIZED DENTAL
39 SCHOOL OR THAT ARISES FROM DENTAL CARE THAT IS PROVIDED AT A RECOGNIZED
40 DENTAL SCHOOL, THE BOARD SHALL FORWARD THE COMPLAINT TO THE RECOGNIZED
41 DENTAL SCHOOL ON A PERIODIC BASIS AS DETERMINED BY THE BOARD BUT NOT MORE
42 THAN SIX MONTHS AFTER THE BOARD RECEIVES THE COMPLAINT. THE RECOGNIZED
43 DENTAL SCHOOL SHALL REVIEW THE COMPLAINT PURSUANT TO THE RECOGNIZED DENTAL
44 SCHOOL'S INTERNAL QUALITY ASSURANCE PROCESS.

1 D. THE BOARD DOES NOT HAVE JURISDICTION OR AUTHORITY OVER ANY
2 PERSON, WHETHER OR NOT LICENSED BY THIS STATE, WHO IS ACTING WITHIN THE
3 SCOPE OF SUBSECTION A, PARAGRAPH 3 OR 8 OF THIS SECTION, EXCEPT THAT A
4 LICENSEE IS SUBJECT TO BOARD JURISDICTION FOR A CONVICTION AS DESCRIBED IN
5 SECTION 32-1263, SUBSECTION A, PARAGRAPH 2 AND IS REQUIRED TO COMPLY WITH
6 SECTION 32-3208."

7 Amend title to conform

And, as so amended, it do pass

DAVID LIVINGSTON
CHAIRMAN

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